

		Probate Code to act on behalf of the successor of the decedent (as defined in Section 13006 of the California Probate Code) with respect to the decedent's interest in the described property.” (9) “No other person has a superior right to the interest of the decedent in the described property.” (10) “The affiant or declarant requests that the described property be paid, delivered, or transferred to the affiant or declarant.” (11) “The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.” “Reasonable proof of the identity of each person executing the affidavit or declaration shall be provided to the holder of the decedent's property.” (Prob. Code, § 13104, subd. (a.); Cal. Prac. Guide Probate at ¶ 2:19.1 [“It is the claimant's duty to ‘furnish’ the holder with proper identification”].) If the declarant is not personally known to the holder of the funds, the affidavit or declaration must contain “a notary public's certificate of acknowledgment of the identity of the person.” (Prob. Code, § 13104, subd. (f).) The property holder is not required to honor a defective Prob.C. § 13101 declaration; and a holder who does honor a defective declaration will not receive the protection afforded by Prob.C. § 13106 (which discharges the holder from further liability with respect to the property transferred under Prob.C. § 13100.” (Cal. Prac. Guide Probate at ¶ 2:17a.) In support of this motion, Claimant provided: [1] a copy of the Grant Deed of the Property to Decedent; [2] a copy of the Decedent’s Certificate of Death; and, [3] a “California Affidavit for Collection of Personal Property,” with a notary's certificate of acknowledgment attached. (Motion, ROA No. 84, Exhibits A, B, and C.) Claimant showed Decedent owned the Subject Property as of 3/22/1999. (Motion, Exhibit A.) The death certificate submitted as Exhibit B in support of the motion shows Decedent died on April 15, 2021 and that Claimant is Decedent’s son. Claimant’s attorney attests Claimant is the son of the former owner of the real property that gave rise to the surplus. (Cara Decl., ROA NO. 84, ¶ 4.) Claimant’s declaration attests: • His mother, the decedent, was the former owner of the Property. (ROA 36 [Whitmore Decl. at ¶ 5].) • Decedent died on April 15, 2021, without a will. (Whitmore Decl. at ¶ 6.) • Decedent was the sole owner of the Property and he is her intestate successor in interest and the proper claimant of the surplus proceeds. (Whitmore Decl. at ¶ 7.) Claimant has established he is entitled to the surplus funds of \$165,355.83 that has been deposited with the Court. No competing claims have been asserted. Claimant’s motion is granted. The case management conference is vacated. Claimant is ordered to give notice.
107	2025-01467718 Marriott Hotel Services, LLC vs.	1. Motion to Set Aside/Vacate Default 2. Case Management Conference Nathan Nguyen’s motion to vacate the default entered against him on 7/15/25 in this

	Do Business Academy LLC	action is granted. [ROA 62.] Defendant is ordered to file a responsive pleading no later than September 4, 2026. The case management conference is continued to January 25, 2027 at 10:00 a.m. in Department C27. Moving party is ordered to give notice.
109	2024-01396208 Perez vs. Torre	1. Motion for Reclassification 2. Trial Setting Conference 3. Order to Show Cause re: Monetary Sanctions The motion by Defendant Trisha Katherine Torre (“Defendant”) for an order reclassifying this action from an unlimited civil case to a limited civil case is denied. As an initial matter, Defendant’s proof of service shows that her reply was served on third parties in a different action, <i>Abba v. Gadea, et al.</i>, Case No. CIVSB2405744, rather than on Plaintiffs. Accordingly, the Court will not consider the reply unless Defendant demonstrates proper service before the hearing. Under Code of Civil Procedure section 403.040, a court may reclassify a case from unlimited to limited civil when the case has been misclassified – that is, if the amount in controversy is \$35,000 or less. (Code Civ. Proc., § 403.040, subd. (a); <i>see, Stern v. Superior Court</i> (2003) 105 Cal.App.4th 223, 230; <i>see also</i> Code Civ. Proc., §§ 85, 88 [defining limited and unlimited civil cases].) The amount in controversy is the amount the plaintiff seeks to recover, excluding attorneys’ fees, interests, and costs. (Code Civ. Proc., § 85.) The governing standard for reclassifying a case from unlimited to limited jurisdiction is found in <i>Walker v. Superior Court</i> (1991) 53 Cal.3d 257. Pursuant to <i>Walker</i>, a trial court must conclude that the amount in controversy will “necessarily” fall short of the jurisdictional minimum before transferring a case from unlimited to limited jurisdiction. (<i>Id.</i>, at 270.) Appellate courts have underscored the high threshold set by <i>Walker</i>: “[The plaintiff] may well not prevail on the factual disputes regarding the extent of his injuries But a [<i>Walker</i>] hearing is not to be perceived as a minitrial or an opportunity for a trial judge to put forth a well-educated guess of a verdict. The unlikelihood of a judgment in excess of \$25,000 is not the test. The trial court reviews the record to determine whether the result is obtainable. Simply stated, the trial court looks to the possibility of a jurisdictionally appropriate verdict, not to its probability.” (<i>Maldonado v. Superior Court</i> (1996) 45 Cal.App.4th 397, 402.) When a defendant brings a motion to reclassify after the time to respond to the complaint, the defendant must show not only that the case was misclassified but also good cause for not bringing the motion earlier. (Code Civ. Proc., § 403.040, subd. (b).) No definite standard or formula is prescribed by law to fix reasonable pain and suffering compensation. Indeed, the law does not permit opinion testimony on the amount of such reasonable compensation, and argument urging a particular calculation or amount cannot be considered evidence. (<i>Loth v. Truck–A–Way Corp.</i> (1998) 60 Cal.App.4th 757, 764-768.) Rather, the calculation is left to the jury’s subjective discretion: The jury is specifically instructed on the absence of a fixed standard in arriving at a pain and suffering award, the only guideline being “a reasonable amount based on the evidence and your common sense.” (CACI 3905A; <i>see, Greater Westchester Homeowners Ass’n v. City of Los Angeles</i> (1979) 26 Cal.3d 86, 103.)